

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1721

By: Seifried of the Senate

and

Lowe of the House

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9 An Act relating to schools; amending 70 O.S. 2021,
10 Section 3-173, as amended by Section 1, Chapter 306,
11 O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-173),
12 which relates to the Oklahoma Advisory Council on
13 Indian Education; extending sunset date; requiring
14 certain appointed members to be duly authorized
15 representatives of certain tribe, department, or
16 entity; providing method of authorization; requiring
17 certain member's service to cease if he or she does
18 not have certain authorization; requiring
19 notification; providing for filling of vacancy;
20 providing certain construction; requiring electronic
21 submission of certain report; updating statutory
22 language; providing an effective date; and declaring
23 an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-173, as
amended by Section 1, Chapter 306, O.S.L. 2023 (70 O.S. Supp. 2025,
Section 3-173), is amended to read as follows:

Section 3-173. A. There is hereby re-created to continue until
~~July 1, 2026~~ July 1, 2029, in accordance with the provisions of the

1 Oklahoma Sunset Law, the Oklahoma Advisory Council on Indian
2 Education.

3 B. The Council shall:

4 1. Make recommendations to the State Board of Education and the
5 Superintendent of Public Instruction in educational matters
6 affecting the education of Native American students;

7 2. Promote educational opportunities and improvement of the
8 quality of education provided to Native American students throughout
9 the state;

10 3. Advocate for Native American students in the state; and

11 4. Monitor and evaluate how the public education system of the
12 state impacts Native American students.

13 C. The Council shall be composed of eighteen (18) members as
14 follows:

15 1. Five members who shall each represent an Indian tribe in the
16 state, of which at least one shall represent an Indian tribe which
17 has an enrollment of ~~less~~ fewer than ten thousand (10,000) members
18 who reside in the state, appointed by the Speaker of the House of
19 Representatives from a list of nominations submitted by the elected
20 executive leaders of different Indian tribes in the state;

21 2. Four members who shall each represent the tribal education
22 departments of an Indian tribe in the state, appointed by the
23 President Pro Tempore of the Senate from a list of nominations
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submitted by the elected executive leaders of different Indian tribes in the state;

3. One member who shall represent the Oklahoma Council for Indian Education, appointed by the Governor;

4. Two members who shall represent two different statewide organizations representing public school teachers, appointed by the President Pro Tempore of the Senate;

5. One member who shall represent a statewide organization representing public school superintendents, appointed by the Speaker of the House of Representatives;

6. One member who shall represent Oklahoma tribal colleges, appointed by the Chancellor of Higher Education;

7. The Director of the Native American Cultural and Educational Authority, or designee;

8. The Chancellor of Higher Education, or designee;

9. The Director of the Oklahoma Department of Career and Technology Education, or designee; and

10. The Superintendent of Public Instruction, or designee.

D. 1. Appointments to the Council shall be made by September 1, 2023. The first meeting of the Council shall be called by the Superintendent of Public Instruction. At the first meeting, the members of the Council shall elect a chair and vice chair from among the members. Meetings of the Council shall be held at least quarterly at the call of the chair. Members shall serve at the

1 pleasure of their appointing authorities. A majority of the members
2 of the Council shall constitute a quorum to transact business, but
3 no vacancy shall impair the right of the remaining members to
4 exercise all of the powers of the Council. A vacancy on the Council
5 shall be filled by the original appointing authority. A vacancy on
6 the Council in a seat representing an Indian tribe in the state or
7 the tribal education department of an Indian tribe in the state may
8 be filled by the original appointing authority from a list of
9 nominations submitted by the elected executive leaders of Indian
10 tribes in the state. Appointments to fill any vacancy on the
11 Council shall be made within three (3) months following the vacancy.
12 The State Department of Education, Oklahoma Department of Career and
13 Technology Education, and the Oklahoma State Regents for Higher
14 Education shall provide staff, support, and information as requested
15 by the Council.

16 2. a. Each member appointed to the Council representing an
17 Indian tribe, tribal education department, or other
18 tribal entity shall be a duly authorized
19 representative of that tribe, tribal education
20 department, or tribal entity at the time of
21 appointment and throughout the duration of his or her
22 appointment. Authorized status shall be granted by
23 the elected executive leaders or the governing body of
24 the tribe or entity.

1 b. A member's service on the Council shall automatically
2 cease if he or she no longer serves as the authorized
3 representative of the tribe, tribal education
4 department, or other tribal entity the member was
5 appointed to represent. The appointing authority
6 shall be notified in writing by the tribe, tribal
7 education department, or other tribal entity of any
8 such change in authorization. Upon receipt of such
9 notice, the position shall be deemed vacant, and the
10 vacancy shall be filled as provided for in this
11 section.

12 c. Any member of the Council on the effective date of
13 this act shall be deemed to meet the requirements of
14 this paragraph and may continue to serve unless and
15 until he or she is no longer the authorized
16 representative of the tribe, tribal education
17 department, or other tribal entity the member was
18 appointed to represent.

19 E. Members of the Council shall receive no compensation for
20 serving on the Council but shall receive travel reimbursement as
21 follows:

22 1. State employees who are members of the Council shall be
23 reimbursed for travel expenses incurred in the performance of their
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1 duties by their respective agencies in accordance with the State
2 Travel Reimbursement Act; and

3 2. All other members of the Council shall be reimbursed by the
4 Office of Management and Enterprise Services for travel expenses
5 incurred in the performance of their duties in accordance with the
6 State Travel Reimbursement Act.

7 F. The Council shall act in accordance with the provisions of
8 the Oklahoma Open Meeting Act and the Oklahoma Open Records Act.

9 G. Members who serve on the Council shall be exempt from the
10 dual-office-holding prohibitions of Section 6 of Title 51 of the
11 Oklahoma Statutes.

12 H. The Council shall have the following duties:

13 1. Identify strategies for developing an efficient and reliable
14 process of communications between Oklahoma education entities,
15 educators, tribal organizations, and other interested parties;

16 2. Identify and disseminate research-based, measurable
17 criteria, both behavioral and academic, by which the success and
18 efficacy of the education offered to Native American students in
19 Oklahoma may be measured;

20 3. Analyze data to ensure that education agencies in Oklahoma
21 continue to address the education needs of Native American students;

22 4. Encourage and promote Native American educational leadership
23 at all levels of the education system; and
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1 5. Make recommendations to the State Board of Education for
2 programs that will help achieve the purposes of the Oklahoma
3 Advisory Council on Indian Education Act.

4 I. The Council shall evaluate and make an annual report on the
5 effectiveness of the public education system in Oklahoma in meeting
6 the needs of Native American students in Oklahoma. The report shall
7 be electronically submitted to the State Board of Education. The
8 report shall also contain a summary of the findings made by the
9 Council pursuant to subsection H of this section, a summary of all
10 data collected by the Council, a summary of the means by which all
11 data was collected by the Council, and any other information deemed
12 necessary by the Council.

13 SECTION 2. This act shall become effective July 1, 2026.

14 SECTION 3. It being immediately necessary for the preservation
15 of the public peace, health, or safety, an emergency is hereby
16 declared to exist, by reason whereof this act shall take effect and
17 be in full force from and after its passage and approval.

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19 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES, dated
20 04/08/2026 - DO PASS.
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